

HOUSE BILL No. 1020

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-18-2-36.4; IC 16-41-19.4.

Synopsis: Access to birth control program. Establishes the access to birth control program (program) administered by the Indiana department of health for the purpose of increasing access to birth control by Indiana residents with a specified maximum household income. Sets forth requirements of the program.

Effective: July 1, 2026.

Lucas

December 1, 2025, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1020

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-18-2-36.4 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 36.4. "Birth control", for**
4 **purposes of IC 16-41-19.4, has the meaning set forth in**
5 **IC 16-41-19.4-1.**

6 SECTION 2. IC 16-41-19.4 IS ADDED TO THE INDIANA CODE
7 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
8 JULY 1, 2026]:

9 **Chapter 19.4. Prevention and Treatment: Access to Birth**
10 **Control Program**

11 **Sec. 1. As used in this chapter, "birth control" means the use of**
12 **a drug, a device, or surgery to prevent pregnancy. The term**
13 **includes any of the following:**

- 14 (1) **Condoms.**
15 (2) **Prescription drugs and over the counter birth control.**
16 (3) **Contraceptive devices, including long acting reversible**
17 **contraceptive (as defined in IC 12-15-47-1).**



1 **Sec. 2. The state department, in consultation with local health**
2 **departments and the office of the secretary of family and social**
3 **services, shall establish the access to birth control program for the**
4 **purpose of increasing access for low income Indiana residents to**
5 **obtain birth control.**

6 **Sec. 3. (a) The state department shall, as part of the access to**
7 **birth control program, develop effective ways to distribute birth**
8 **control to Indiana residents who have a household income of not**
9 **more than one hundred eighty-five percent (185%) of the federal**
10 **poverty level.**

11 **(b) The access to birth control program must include the**
12 **following measures:**

13 **(1) Parental consent must be obtained before distributing**
14 **birth control to an individual who is less than eighteen (18)**
15 **years of age.**

16 **(2) Reimbursement for any birth control distributed may not**
17 **be higher than the Medicaid reimbursement rate for the birth**
18 **control.**

19 **(3) An individual who qualifies for and receives birth control**
20 **under the program may not be required to pay for the birth**
21 **control.**

22 **(4) Any birth control that requires a prescription must be**
23 **obtained through a health care provider with prescriptive**
24 **authority for prescribing birth control.**

25 **Sec. 4. The state department may apply for any state or federal**
26 **funding, grants, or programs available for the implementation and**
27 **administration of the access to birth control program.**

